

PR-25-000725 IN THE MATTER OF MOSS 2001 REVOCABLE TRUST - Trustee Aaron Moss Notice of Demurrer to Petition -- OVERRULED.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: Parties to note: If any party would like to request a hearing on this matter, please note that the Court will hold oral arguments concerning the demurrer on August 11, 2026, at 8:30 am in Department 22. Respondent's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the existence, contents, and filing dates of the Court's March 24, 2026 minute order and Respondent's April 10, 2026 demurrer. Respondent's demurrer to the Petition for an Order to Recover Real Property Belonging to the Trust and Request for Double Damages and Attorney's Fees is OVERRULED for the reasons set forth below. Parties to note: If any party would like to request a hearing on this matter, please note that the Court will hold oral arguments concerning the demurrer on August 11, 2026, at 8:30 am in Department 22. Governing Standards "A demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the Court treats all properly pleaded material facts as admitted, but not contentions, deductions, or conclusions of fact or law. The Court may also consider matters subject to judicial notice. (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) The pleading must be construed liberally and "with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) A demurrer must be based upon matters appearing on the face of the pleading, exhibits attached to the pleading, or matters properly judicially noticed. If a pleading states a cause of action under any legal theory, it is good against a general demurrer. (Quelimane Co., Inc. v. Stewart Title Guar. Co. (1998) 19 Cal.4th 26, 38; Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.) Further, a plaintiff need only plead ultimate facts sufficient to state a claim and need not plead every evidentiary fact that may ultimately support recovery. A. Timeliness Petitioner argues the demurrer is untimely under Probate Code section 1043 and Goebner v. Superior Court (2025) 110 Cal.App.5th 1105 because it was filed after the petition's initial hearing date. Respondent contends the Court's March 24, 2026 order established a May 12, 2026 deadline for "any objection or other pleading" and that the demurrer was filed on April 10, 2026. The Court agrees with Respondent. The March 24, 2026 minute order expressly continued the matter to allow objections to be filed and directed that "[a]ny objection or other pleading" be filed and served no later than May 12, 2026. Respondent filed the demurrer approximately one month before that deadline. Accordingly, the Court finds the demurrer timely. B. Probate Code § 19402 Respondent argues the petition fails to state facts sufficient to support any claim predicated on Probate Code § 19402 because that statute applies only to post-death trust distributions, whereas the petition alleges a transfer occurring during Georgianna Moss's lifetime in 2013. The Court declines to sustain the demurrer on this ground. The petition alleges that the Survivor's Trust executed a promissory note in favor of the Irrevocable Trust, that the obligation became due after Georgianna Moss's death, that the Survivor's Trust lacks sufficient assets to satisfy the obligation, that Aaron Moss received the property transferred from the Survivor's Trust, and that Aaron may be liable individually for obligations arising from those transactions. Whether Petitioner's legal theory under Probate Code § 19402 ultimately succeeds presents a substantive legal issue that cannot be resolved solely from the face of the petition. At this stage, the Court cannot conclude as a matter of law that the petition affirmatively negates all possible theories of liability. The demurrer is therefore overruled as to this ground. C. Probate Code § 850 Respondent argues the petition fails to state a claim under Probate Code § 850 because the petition alleges that the Irrevocable Trust exchanged its one-third ownership interest in the property for a promissory note and therefore no longer owned the property. Respondent contends the trust's asset is the note, not the real property. The Court is not persuaded that the petition is defective as a matter of law. The petition alleges that the note remains unpaid, that Aaron Moss presently holds property allegedly traceable to the transaction, that Aaron occupies fiduciary roles creating alleged conflicts of interest, and that the Irrevocable Trust is entitled to recover either the property interest or the value represented by the note. The Court must liberally construe the petition and accept properly pleaded factual allegations as true. Under that standard, the Court cannot conclude that Petitioner can prove no set of facts supporting relief under Probate Code § 850. To the extent Respondent disputes Petitioner's characterization of the legal effect of the 2013 transactions, that dispute is more appropriately resolved on a developed factual record rather than by demurrer. D. Probate Code § 859 Respondent argues the petition fails to state facts sufficient to support double damages and attorney's fees under Probate Code § 859 because the petition's allegations of concealment concern the promissory note while the requested penalty is based on the value of the real property. The Court declines to sustain the demurrer on this ground. The petition alleges that Aaron Moss denied knowledge of the promissory note, later produced it, refused to pursue collection of the obligation, and wrongfully retained property or value allegedly belonging to the Irrevocable Trust. The petition further alleges that such conduct was wrongful and undertaken in bad faith. Whether those allegations ultimately establish bad-faith wrongful taking, concealment, or disposition within the meaning of Probate Code section 859 presents factual and legal questions that cannot be resolved on demurrer. At this stage, the Court concludes the petition adequately pleads ultimate facts supporting the requested statutory remedy. (See C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) E. Alleged Inconsistency of

Petitioner's Theories Respondent argues the petition is defective because it allegedly treats the 2013 transaction as both valid and invalid. The Court disagrees. Alternative and even inconsistent theories may be pleaded. More importantly, if the petition states a claim under any legal theory, the pleading survives demurrer. (Quelimane Co., Inc. v. Stewart Title Guar. Co., supra, 19 Cal.4th at p. 38.) The petition clearly identifies the challenged transactions, the promissory note, the alleged failure to pay the obligation, the claimed conflict of interest, and the statutory grounds for relief. The Court therefore finds the petition sufficiently apprises Respondent of the nature of the claims asserted. F. Uncertainty The Court notes that Respondent listed Code of Civil Procedure § 430.10(e), failure to state sufficient facts, as the sole ground for demurrer. However, to the extent Respondent's motion may be construed as arguing uncertainty, the Court finds no basis for upholding that position. A demurrer for uncertainty is strictly construed and should be sustained only where a pleading is so unintelligible that a defendant cannot reasonably respond. (See Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 615.) The record demonstrates that Respondent was able to respond in detail to the petition, filing a verified objection admitting or denying virtually every substantive allegation and asserting numerous affirmative defenses. The petition therefore cannot reasonably be characterized as unintelligible or incapable of response. Conclusion As Respondent has already filed substantive objections, if he wishes to amend his response, he is required to do so by stipulation or by way of a motion for leave to amend. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: ***There are no tentative rulings in Department 23*** The following are the tentative rulings for cases calendared before Judge David Hood in Department 24: ***There are no tentative rulings in Department 24*** The following is the tentative ruling for a case calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: UD- 26-000413

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PR-25-000725 - IN THE MATTER OF MOSS 2001 REVOCABLE TRUST - Trustee Aaron Moss Notice of Demurrer to Petition — OVERRULED.

Parties to note: If any party would like to request a hearing on this matter, please note that the Court will hold oral arguments concerning the demurrer on August 11, 2026, at 8:30 am in Department 22.

Respondent's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the existence, contents, and filing dates of the Court's March 24, 2026 minute order and Respondent's April 10, 2026 demurrer.

Respondent's demurrer to the Petition for an Order to Recover Real Property Belonging to the Trust and Request for Double Damages and Attorney's Fees is OVERRULED for the reasons set forth below.

Parties to note: If any party would like to request a hearing on this matter, please note that the Court will hold oral arguments concerning the demurrer on August 11, 2026, at 8:30 am in Department 22.

Governing Standards

"A demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the Court treats all properly pleaded material facts as admitted, but not contentions, deductions, or conclusions of fact or law. The Court may also consider matters subject to judicial notice. (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) The pleading must be construed liberally and "with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) A demurrer must be based upon matters appearing on the face of the pleading, exhibits attached to the pleading, or matters properly judicially noticed.

If a pleading states a cause of action under any legal theory, it is good against a general demurrer. (Quelimane Co., Inc. v. Stewart Title Guar. Co. (1998) 19 Cal.4th 26, 38; Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.) Further, a plaintiff need only plead ultimate facts sufficient to state a claim and need not plead every evidentiary fact that may ultimately support recovery.

A. Timeliness

Petitioner argues the demurrer is untimely under Probate Code section 1043 and *Goebner v. Superior Court* (2025) 110 Cal.App.5th 1105 because it was filed after the petition's initial hearing date. Respondent contends the Court's March 24, 2026 order established a May 12, 2026 deadline for "any objection or other pleading" and that the demurrer was filed on April 10, 2026.

The Court agrees with Respondent. The March 24, 2026 minute order expressly continued the matter to allow objections to be filed and directed that "[a]ny objection or other pleading" be filed and served no later than May 12, 2026. Respondent filed the demurrer approximately one month before that deadline. Accordingly, the Court finds the demurrer timely.

B. Probate Code § 19402

Respondent argues the petition fails to state facts sufficient to support any claim predicated on Probate Code § 19402 because that statute applies only to post-death trust distributions, whereas the petition alleges a transfer occurring during Georgianna Moss's lifetime in 2013.

The Court declines to sustain the demurrer on this ground. The petition alleges that the Survivor's Trust executed a promissory note in favor of the Irrevocable Trust, that the obligation became due after Georgianna Moss's death, that the Survivor's Trust lacks sufficient assets to satisfy the obligation, that Aaron Moss received the property transferred from the Survivor's Trust, and that Aaron may be liable individually for obligations arising from those transactions.

Whether Petitioner's legal theory under Probate Code § 19402 ultimately succeeds presents a substantive legal issue that cannot be resolved solely from the face of the petition. At this stage, the Court cannot conclude as a matter of law that the petition affirmatively negates all possible theories of liability. The demurrer is therefore overruled as to this ground.

C. Probate Code § 850

Respondent argues the petition fails to state a claim under Probate Code § 850 because the petition alleges that the Irrevocable Trust exchanged its one-third ownership interest in the property for a promissory note and therefore no longer owned the property. Respondent contends the trust's asset is the note, not the real property.

The Court is not persuaded that the petition is defective as a matter of law. The petition alleges that the note remains unpaid, that Aaron Moss presently holds property allegedly traceable to the transaction, that Aaron occupies fiduciary roles creating alleged conflicts of interest, and that the Irrevocable Trust is entitled to recover either the property interest or the value represented by the note.

The Court must liberally construe the petition and accept properly pleaded factual allegations as true. Under that standard, the Court cannot conclude that Petitioner can prove no set of facts supporting relief under Probate Code § 850. To the extent Respondent disputes Petitioner's characterization of the legal effect of the 2013 transactions, that dispute is more appropriately resolved on a developed factual record rather than by demurrer.

D. Probate Code § 859

Respondent argues the petition fails to state facts sufficient to support double damages and attorney's fees under Probate Code § 859 because the petition's allegations of concealment concern the promissory note while the requested penalty is based on the value of the real property.

The Court declines to sustain the demurrer on this ground. The petition alleges that Aaron Moss denied knowledge of the promissory note, later produced it, refused to pursue collection of the obligation, and wrongfully retained property or value allegedly belonging to the Irrevocable Trust. The petition further alleges that such conduct was wrongful and undertaken in bad faith.

Whether those allegations ultimately establish bad-faith wrongful taking, concealment, or disposition within the meaning of Probate Code section 859 presents factual and legal questions that cannot be resolved on demurrer. At this stage, the Court concludes the petition adequately pleads ultimate facts supporting the requested statutory remedy. (See *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

E. Alleged Inconsistency of Petitioner's Theories

Respondent argues the petition is defective because it allegedly treats the 2013 transaction as both valid and invalid.

The Court disagrees. Alternative and even inconsistent theories may be pleaded. More importantly, if the petition states a claim under any legal theory, the pleading survives demurrer. (*Quelimane Co., Inc. v. Stewart Title Guar. Co.*, supra, 19 Cal.4th at p. 38.)

The petition clearly identifies the challenged transactions, the promissory note, the alleged failure to pay the obligation, the claimed conflict of interest, and the statutory grounds for relief. The Court therefore finds the petition sufficiently apprises Respondent of the nature of the claims asserted.

F. Uncertainty

The Court notes that Respondent listed Code of Civil Procedure § 430.10(e), failure to state sufficient facts, as the sole ground for demurrer. However, to the extent Respondent's motion may be construed as arguing uncertainty, the Court finds no basis for upholding that position. A demurrer for uncertainty is strictly construed and should be sustained only where a pleading is so unintelligible that a defendant cannot reasonably respond. (See *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 615.)

The record demonstrates that Respondent was able to respond in detail to the petition, filing a verified objection admitting or denying virtually every substantive allegation and asserting numerous affirmative defenses. The petition therefore cannot reasonably be characterized as unintelligible or incapable of response.

Conclusion

As Respondent has already filed substantive objections, if he wishes to amend his response, he is required to do so by stipulation or by way of a motion for leave to amend.

The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

There are no tentative rulings in Department 23

The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

There are no tentative rulings in Department 24

The following is the tentative ruling for a case calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

UD- 26-000413 - BANSAL, JANAK vs GARCIA, JOE R -Motion to Set Aside Default & Default Judgment - HEARING REQUIRED.

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